

Smt. Urmila Devi v. Dakshinanchal Vidyut Vitran Nigam Ltd. & 3 Others

Allahabad High Court · Division Bench · 28 March 2014 · 2014 SCC OnLine All 4417 · Writ - C No. 17816 of 2014 · **Interim order** — **recovery stayed pending consideration of the Clause 8.2(x)(h) claim**

HEADNOTE

Interim order. Where a consumer alleged to be involved in theft of electricity is exonerated in the criminal case — the police having filed a final report that she was not involved, which the competent court accepted — she claims the benefit of Clause 8.2(x)(h) of the U.P. Electricity Supply Code, 2005 to have the theft assessment (and consequent recovery based on the inspection report) set aside. Finding that the matter required consideration, the Court, as interim relief, stayed recovery under the impugned citation pending exchange of affidavits. No final view was expressed on the effect of the final report under Clause 8.2(x)(h).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2

Effect of a criminal final report/exoneration on a theft assessment — interim stay

QUESTION

(Interim) Does a police final report (accepted by the court) exonerating the consumer of theft entitle her to have the theft assessment set aside under Clause 8.2(x)(h)?

HOLDING

The Court held the matter requires consideration and, as interim relief, stayed recovery under the citation dated 30.1.2014 pending affidavits. No final view was expressed on whether the accepted final report entitles the consumer to relief under Clause 8.2(x)(h). ¶ (order)

FLAG Interim order only; the Clause 8.2(x)(h) question is reserved for final hearing.

PRINCIPLE TAGS

clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment A consumer exonerated of theft (here by an accepted police final report) claims the benefit of Clause 8.2(x)(h) to set aside the theft assessment; pending decision, recovery is stayed. ¶ (order)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ACCEPTED FINAL REPORT DISCHARGES THE THEFT ASSESSMENT UNDER CLAUSE 8.2(X)(H)

Reserved for final hearing; only interim stay of recovery was granted. ¶ (order)